

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3566

By: Wolfley

AS INTRODUCED

An Act relating to Service Oklahoma; amending 47 O.S. 2021, Section 1141.1, as last amended by Section 20, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1141.1), which relates to retention of taxes and fees; modifying amount of certain fee to be retained by licensed operators; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 1141.1, as last amended by Section 20, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1141.1), is amended to read as follows:

Section 1141.1. A. Each licensed operator shall be entitled to retain the following amounts from the taxes and fees collected by such licensed operator to be used to fund the operation of the office of such licensed operator subject to the provisions of Sections 1140 through 1147 of this title:

1. Beginning July 1, 2006, through June 30, 2023, Three Dollars and fifty-six cents (\$3.56) for each vehicle registered pursuant to the Oklahoma Vehicle License and Registration Act;

1 2. Beginning on or after January 1, 2022, through June 30,
2 2023, if a special or personalized license plate is issued pursuant
3 to Sections 1135.1 through 1135.7 of this title and remittance is
4 combined with the registration required pursuant to Section 1132 of
5 this title, Seven Dollars and twelve cents (\$7.12). Beginning July
6 1, 2023, through June 30, 2025, Three Dollars and fifty-six cents
7 (\$3.56) for each special license plate issued pursuant to Sections
8 1135.1 through Section 1135.7 of this title;

9 3. One Dollar and twenty-five cents (\$1.25) for each
10 certificate of title issued for boats and motors pursuant to the
11 Oklahoma Statutes;

12 4. For each certificate of registration issued for boats and
13 motors pursuant to the Oklahoma Statutes, an amount determined
14 pursuant to the provisions of subsection B of this section;

15 5. ~~Two Dollars and twenty-five cents (\$2.25)~~ Three Dollars and
16 seventy-five cents (\$3.75) for each certificate of title issued
17 pursuant to the Oklahoma Vehicle License and Registration Act.
18 Provided, the fee retention amount for certificates of title issued
19 pursuant to the provisions of subsection H of Section 1105 of this
20 title, in which an insurer pays the optional twenty-two-dollar-fee
21 amount, is Four Dollars and fifty cents (\$4.50);

22 6. Beginning July 1, 2002, through June 30, 2023, each licensed
23 operator shall be entitled to retain three and twenty-five one-

1 hundredths percent (3.25%) of the vehicle excise tax collected
2 pursuant to Section 2103 of Title 68 of the Oklahoma Statutes;

3 7. Four percent (4%) of the excise tax collected on the
4 transfer of boats and motors pursuant to the Oklahoma Statutes
5 through June 30, 2025;

6 8. Two Dollars (\$2.00) for each driver license, endorsement,
7 identification license, or renewal or duplicate issued pursuant to
8 Section 6-101 et seq. of this title through June 30, 2023;

9 9. Two Dollars (\$2.00) for the recording of security interests
10 as provided in Section 1110 of this title;

11 10. Two Dollars (\$2.00) for each inspection conducted pursuant
12 to subsection L of Section 1105 of this title;

13 11. Three Dollars (\$3.00) for each inspection conducted
14 pursuant to subsection M of Section 1105 of this title;

15 12. One Dollar (\$1.00) for each certificate of ownership filed
16 pursuant to subsection R of Section 1105 of this title;

17 13. One Dollar (\$1.00) for each temporary permit issued
18 pursuant to Section 1124 of this title;

19 14. One Dollar and fifty cents (\$1.50) for processing each
20 proof of financial responsibility, driver license information,
21 insurance verification information, and other additional information
22 as provided in Section 7-602 of this title;

23 15. The mailing fees and registration fees provided in Sections
24 1131 and 1140 of this title;

1 16. The notary fee provided in Section 1143 of this title;

2 17. Three Dollars (\$3.00) for each lien entry form completed
3 and recorded on a certificate of title pursuant to subsection G of
4 Section 1105 of this title;

5 18. Seven Dollars (\$7.00) for each notice of transfer as
6 provided by subsection B of Section 1107.4 of this title;

7 19. Seven Dollars (\$7.00) for each certificate of title or each
8 certificate of registration issued for repossessed vehicles pursuant
9 to Section 1126 of this title;

10 20. Any amount specifically authorized by law to be retained by
11 the licensed operator for the furnishing of a summary of a traffic
12 record;

13 21. Beginning July 1, 2009, and through June 30, 2023, each
14 licensed operator shall also be entitled to a portion of the
15 penalties for delinquent registration or payment of excise tax as
16 provided for in subsection C of Section 1115, subsection F of
17 Section 1132 and subsection C of Section 1151 of this title and of
18 subsection A of Section 2103 of Title 68 of the Oklahoma Statutes;

19 22. Beginning January 1, 2023, each licensed operator shall be
20 entitled to retain Three Dollars and fifty-six cents (\$3.56) for
21 each electric vehicle registered pursuant to the provisions of this
22 act and such amount shall be in addition to any other amount
23 otherwise authorized by this section to be retained with respect to
24 a vehicle through June 30, 2025;

1 23. Beginning January 1, 2023, and through June 30, 2023, each
2 licensed operator shall be entitled to retain three and twenty-five
3 hundredths percent (3.25%) of the vehicle excise tax collected
4 pursuant to Section 2103 of Title 68 of the Oklahoma Statutes for
5 each electric vehicle but such amount shall not be in addition to
6 any other amount otherwise authorized by this section to be retained
7 with respect to a vehicle; and

8 24. Upon the effective date of this act, Service Oklahoma is
9 authorized to set the licensed operator compensation pursuant to
10 Section 3-103 of this title for processing the documentation
11 submitted and issuing the license plate and/or decal pursuant to
12 this subsection.

13 The balance of the funds collected shall be remitted to Service
14 Oklahoma as provided in Section 1142 of this title to be apportioned
15 pursuant to Section 1104 of this title.

16 B. Through June 30, 2025, for each certificate of registration
17 issued for boats and motors, each licensed operator shall be
18 entitled to retain the greater of One Dollar and twenty-five cents
19 (\$1.25) or an amount to be determined by Service Oklahoma according
20 to the provisions of this subsection. At the end of fiscal year
21 1997 and each fiscal year thereafter, Service Oklahoma shall compute
22 the average amount of registration fees for all boats and motors
23 registered in this state during the fiscal year and shall multiply
24 the result by six and twenty-two one-hundredths percent (6.22%).

1 The resulting product shall be the amount which may be retained by
2 each licensed operator for each certificate of registration for
3 boats and motors issued during the following calendar year.

4 C. When an application for registration is made with Service
5 Oklahoma, the Corporation Commission or a licensed operator, a
6 registration fee of One Dollar and seventy-five cents (\$1.75) shall
7 be collected for each license plate or decal issued. Such fees
8 shall be in addition to the registration fees on motor vehicles and
9 when an application for registration is made to the licensed
10 operator, such licensed operator shall retain a fee as provided in
11 Section 1141.1 of this title through June 30, 2023. Beginning July
12 1, 2023, the fee shall be retained by the licensed operator pursuant
13 to subsection E of Section 1141.1 of this title. When the fee is
14 paid by a person making application directly with Service Oklahoma
15 or the Corporation Commission, as applicable, the registration fees
16 shall be in the same amount as provided for licensed operators and
17 the fee provided by this section shall be deposited in the Service
18 Oklahoma Revolving Fund or as provided in Section 1167 of this
19 title, as applicable. Service Oklahoma shall prepare schedules of
20 registration fees and charges for titles, which shall include the
21 fees for licensed operators, and all fees and charges paid by a
22 person shall be listed separately on the application and
23 registration and totaled on the application and registration. The
24 licensed operators shall charge only such fees as are specifically

1 provided for by law, and all such authorized fees shall be posted in
2 such a manner that any person shall have notice of all fees that are
3 imposed by law.

4 D. Unless otherwise provided, beginning July 1, 2025, the
5 provisions related to the reimbursement, retention, apportionment,
6 or distribution of funds to or by licensed operators as outlined in
7 this section shall be retained by the licensed operator pursuant to
8 subsection E of this section.

9 E. Beginning July 1, 2023, unless otherwise provided, licensed
10 operator compensation shall be fixed by Service Oklahoma pursuant to
11 Section 3-103 of this title.

12 1. For fiscal year beginning July 1, 2023, through the fiscal
13 year ending on June 30, 2025:

14 a. licensed operators shall be entitled to retain
15 nineteen percent (19%) of all fees collected related
16 to registrations provided by the Oklahoma Vehicle
17 License and Registration Act,

18 b. licensed operators shall be entitled to retain forty
19 percent (40%) of all fees collected related to the
20 issuance of Class A, Class B, Class C, and Class D
21 driver licenses, permits, and identification cards,
22 including REAL ID Compliant and REAL ID Noncompliant
23 credentials, pursuant to Section 6-101 et seq. of this
24 title, and

1 c. licensed operators shall be entitled to retain Three
2 Dollars and fifty-six cents (\$3.56) for the annual
3 renewal of each frac tank, construction machinery,
4 rental trailer, commercial trailer or semitrailer
5 registered pursuant to Section 1133 of this title.

6 2. All other fees directed by this section shall default back
7 to the apportionment outlined in Section 1104 of this title.

8 SECTION 2. This act shall become effective November 1, 2026.

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